

Namita Mohananda vs Tripati Mohananda Opposite Party on 3 February, 2025

Author: Murahari Sri Raman

Bench: Murahari Sri Raman

IN THE HIGH COURT OF ORISSA AT CUTTACK
TRP(C) No.148 of 2017

Namita Mohananda		Petitioner
	Mr. Dibya Jyoti Sahoo, Advocate	
	-versus-	
Tripati Mohananda		Opposite Party
		None

CORAM:
HON'BLE MR. JUSTICE MURAHARI SRI RAMAN

Order No.
06.

ORDER
03.02.2025

This matter is taken up through Hybrid Mode.

2. This Transfer Petition (Civil) has been filed by the Petitioner-wife seeking transfer of Civil Proceeding No.106 of 2015 filed under Section 13(1) of the Hindu Marriage Act, 1955 read with Section 7 of the Family Courts Act, 1984 at the instance of the Opposite Party-husband in the Court of the Judge, Family Court, Jajpur, to the Court of the Judge, Family Court, Bhubaneswar, where the petitioner-wife has filed Civil Proceeding No.222 of 2013 under Section 18 of the Hindu Adoption and Maintenance Act.

3. Mr. Dibya Jyoti Sahoo, learned counsel appearing for the petitioner-wife, on instruction, submitted that both the aforesaid cases are now pending in the respective Courts. He further submitted that the petitioner-wife is now residing at Nayapalli, Bhubaneswar in the district of Khurda. He also submitted that if C.P. No.106 of 2015 pending in the Court of the Judge, Family Court, Jajpur continues there, the petitioner-wife would face difficulty in appearing on each date of posting of the said case.

4. None appeared for the opposite party-husband despite opportunities granted on earlier occasions.

5. This Court vide order dated 11.12.2024 passed the following order:-

"This matter is taken up through hybrid mode.

2. As per the office note, though notice was issued to the Opposite Party by Speed Post with A.D., fixing the date of appearance to 14.07.2017, the same has returned unserved with a noting "Addressee Left".
3. Learned Counsel for the Petitioner submits, the stay order passed by this Court was produced in C.P. No.106 of 2015, in which the Opposite Party is the Petitioner. Though he is well aware about pendency of this transfer petition, is intentionally avoiding to receive notice and appear in this case.
4. In view of such submission made and office note, so also Judgments of the Supreme Court reported in AIR 1989 SC 630 (M/s. Madan & Co. Vs. Wazir Jaivir Chand), in (1999) 7 SCC 510 (K. Bhaskaran Vs. Sankaran Vaidhyan Balan & anr.), in (2006) 6 SCC 456 (D. Vinod Shivappa Vs. Nanda Belliappa), in (2007) 6 SCC 555 (C.C. Alivi Haji Vs. Palapetty Muhammed & anr.) and in (2014) 12 SCC 685 (Ajeet Seeds Limited Vs. K. Gopal Krishnaiah), notice on the Opposite Party is held to be sufficient.
5. A query being made as to the present status of C.P. No.106 of 2015, learned Counsel for the Petitioner prays for a short adjournment to take instruction in the said regard.
6. The matter be listed in the week commencing from 23rd December, 2024.
7. Interim order passed earlier shall continue till the next date, subject to pendency of C.P. No.106 of 2015 before the Judge, Family Court, Jajpur."
6. Perused the record.
7. Considering the submissions advanced by Mr. Dibya Jyoti Sahoo, learned counsel appearing for the petitioner-wife, looking to the age of the petitioner-wife and also taking into account the difficulty that would be faced by her in attending on each date of posting of C.P. No.106 of 2015 stated to be pending in the Court the Judge, Family Court, Jajpur, interest of justice would be best served if C.P. No.106 of 2015 is transferred to the Court of the Judge, Family Court, Bhubaneswar, where C.P. No.222 of 2013 filed at the instance of the petitioner-wife is stated to be pending, for disposal in accordance with law.
8. Accordingly, C.P. No.106 of 2015 pending in the Court of the Judge, Family Court, Jajpur is transferred to the Court of the Judge, Family Court, Bhubaneswar for disposal in accordance with law. Since the Civil Proceeding is pending since 2015, the learned Judge, Family Court on receipt of record of C.P. No.106 of 2015 shall take effective steps to conclude the said proceeding as expeditiously as possible preferably within a period of six months hence, if there is no other legal impediment.
9. Both the learned Judge, Family Court, Jajpur and learned Judge, Family Court, Bhubaneswar are directed to act upon the communication of this order or on production of certified copy of this order before them, whichever is earlier.

10. With the aforesaid order, this TRP(C) stands disposed of being allowed.

11. Registry is instructed to communicate this order to the Courts of the Judge, Family Court, Jajpur as well as the Judge, Family Court, Bhubaneswar forthwith.

Signature Not

Verified

Digitally Signed

Signed by: MANORANJAN

SAMAL

(M.S. Raman)

Designation: PERSONAL

ASSISTANT

Reason: Authentication

Judge

Location: MRS

Orissa High Court,

Cuttack